

**DEPARTMENT SEVEN  
JUDGE TIM P. KAM  
707-207-7307  
TENTATIVE RULINGS SCHEDULED FOR  
FRIDAY, AUGUST 21, 2026**

***The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.***

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30 p.m.

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**IAN FINGER vs. GENERAL MOTORS, LLC  
Case No. CU23-00693**

Motion to for Attorneys' Fees

**TENTATIVE RULING**

Plaintiff's motion for attorneys' fees is granted in part. Plaintiff is awarded attorneys' fees in the amount of \$10,037.50. Costs and expenses shall be claimed and contested in the accordance with the rules adopted by the Judicial Council. (Code Civ. Proc. § 1034(a).)

**Analysis of Fee Award.** When awarding required fees to a lemon law plaintiff a court must make an initial determination of the actual time expended and then ascertain whether under all the circumstances of the case the amount of actual time expended and the charge for the time are reasonable. (*Hanna v. Mercedes-Benz USA, LLC* (2019) 36 Cal.App.5th 493, 507 (*Hanna*).) These circumstances include, but are not limited to, the complexity of the case, procedural demands, skill exhibited, and results achieved. (*Ibid.*) If the time expended or the charge for that time are not reasonable under all the circumstances the court must take this into account and award a lesser amount of fees. (*Ibid.*) The prevailing buyer has the burden of showing that the fees incurred were allowable, reasonably necessary, and reasonable in amount. (*Ibid.*) A reasonable hourly rate is one that fits with prevailing rates for like work in the same area. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.) This "lodestar" method of fee award calculation vests discretion in the trial court to decide which hours are reasonably spent on litigation and what hourly rates should be used. (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 35.) This is because a trial judge is the best judge

of the value of professional services rendered in the trial court. (*Goglin v. BMW of North America, LLC* (2016) 4 Cal.App.5th 462, 470.) The court may also apply a multiplier to increase or decrease the initial “hours times rate” lodestar figure depending on the novelty or difficulty of questions the case presented, the skill displayed in presenting the case, the extent to which the case precluded other employment for the attorneys, and the contingent nature of the fee award. (*Serrano v. Priest* (1977) 20 Cal.3d 25, 49.) However, the trial court may not tie the fee award to the amount of the plaintiff’s recovery in an action under the Act. (*Hanna* at p. 510.)

Defendant GM has not contested the hourly billing rates.

The Court finds that the time spent on the following tasks are unreasonable and warrant reduction. The Court finds that the tasks at issue are not new or complex.

**1. Drafting Complaint and First Amended Complaint: April 4, 2023 and October 3, 2023.**

The Court reduces the billing of Attorney Vaziri on April 4, 2023 by 1 hour = \$610.

The Court reduces the billing of Attorney Tan on October 3, 2023 by .5 hours = \$225.

**2. In Limine Motions and Oppositions July 2, 2025.**

The Court reduces the billing of Attorney McMillan by 1.3 hours = \$565

**3. Notices and Administrative Filings July 24, 2023, September 29, 2023, March 28, 2024.**

The Court reduces the billing of Attorney Carroll on July 24, 2023 by .15 hours = \$89.25.

The Court reduces the billing of Attorney Carroll on September 29, 2023 by .15 hours = \$89.25.

**4. Fraud Claims.**

The court disallows the 8.1 hours collectively billed by Attorneys Carroll, Tan, and Lister to oppose Defendant’s demurrers and motions to strike directed against only Plaintiff’s fraudulent inducement cause of action and the claim for punitive damages for which attorneys’ fees are not authorized = \$4,445.

As explained in *Santana v. FCS US, LLC* (2020) 56 Cal.App.5th 334,

“ ‘ When a cause of action for which attorney fees are provided by statute is joined with other causes of action for which attorney fees are not permitted, the prevailing party may recover only on the statutory cause of action.’ ([Akins v. Enterprise Rent-A-Car Co. \(2000\) 79 Cal.App.4th 1127, 1133 \[94 Cal. Rptr. 2d 448\]](#).) However, ‘[s]uch fees need not be apportioned when incurred for representation on an issue common to both causes of action in which fees are proper and those in which they are not.’ ([Bell, supra, 82 Cal.App.4th at p. 687.](#))

Moreover, '[a]pportionment is not required when the claims for relief are so intertwined that it would be impracticable, if not impossible, to separate the attorney's time into compensable and noncompensable units.' (*Ibid.*)" *Id.* at 349.

**5. Anticipated Fees:**

The court disallows the amount sought for anticipated fees, especially in the absence of any reply papers and supporting evidence of any additional work performed. The Court further finds that Plaintiff's evidentiary objections filed on August 12, 2026 are unnecessary = \$3,500.

No multiplier is awarded. The court finds nothing novel, difficult, or out of the ordinary about the present case. Similarly, the court does not find exceptional skill or exceptional results that would warrant a multiplier.

**Total Attorneys Fees Requested:** \$19561.00

**Total Reduction to Attorneys Fees:** \$9523.50

**Total Attorneys Fees Awarded:** \$10037.50

**Costs** are denied without prejudice. Costs and expenses shall be claimed and contested in the accordance with the rules adopted by the Judicial Council. (Code Civ. Proc. § 1034(a).)

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**EMILY POZZOBON vs. FORD MOTOR COMPANY; ET AL.**  
**Case No. CU24-06041**

FORD's Motion for Summary Judgment

TENTATIVE RULING

The Parties are to appear to address Defendant FORD's failure to file its separate statement with the original motion.

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**MONICA M. LLOYD and PATSY A. STARKS-WILLIAMS v. FCA US, LLC**  
**Case No. CU24-07477**

FCA's Motion for Summary Judgment

TENTATIVE RULING

Defendant FCA US, LLC ("FCA") moves for summary judgment against Plaintiffs MONICA M. LLOYD and PATSY A. STARKS-WILLIAMS's first amended complaint ("1AC") alleging causes of action for (1) violation of Civil Code section 1793.2,